

TENTATIVE RULING

Case: **Gaches v. Doe**
 Case No. CV2025-1750

Hearing Date: **September 17, 2026** **Department Fourteen** **9:00 a.m.**

Defendants Deborah A. Buell-Swann and Neal Swann’s (collectively, “defendants”) unopposed motion to continue trial is **GRANTED**. (Cal. Rules of Court, rule 3.1332.) The current dates for the trial readiness conference and trial are **VACATED**. All discovery cut-off dates, and other dates, will be tied to the new trial date.

Parties are **DIRECTED TO APPEAR** to select a new trial date.

TENTATIVE RULING

Case: **Hendrix v. Ebay, Inc.**
Case No. CV2026-0240

Hearing Date: **September 17, 2026** **Department Fourteen** **9:00 a.m.**

Plaintiff's motion for leave to file a second amended complaint:

Plaintiff Shannon Hendrix's ("plaintiff") motion to file second amended complaint is **DENIED WITHOUT PREJUDICE**. (Code Civ. Proc., § 473, subd. (a)(1); Cal. Rules of Court, rule 3.1324.) The Court finds that plaintiff's motion fails to: (1) include a copy of the proposed amendment or amended pleading, which must be serially numbered to differentiate it from previous pleadings or amendments; (2) state what allegations in the previous pleading are proposed to be deleted, if any, and where, by page, paragraph, and line number, the deleted allegations are located; and (3) state what allegations are proposed to be added to the previous pleading, if any, and where, by page, paragraph, and line number, the additional allegations are located. (Cal. Rules of Court, rule 3.1324(a).)

The notice of motion does not provide notice of this Court's tentative ruling system as required by Local Rule 11.2(b). Counsel for moving party, or the moving party if unrepresented by counsel, is ordered to notify the opposing party or parties immediately of the tentative ruling system.

If no hearing is requested, and no party appears at the hearing, this tentative ruling is effective immediately. No formal order pursuant to California Rules of Court, rule 3.1312 or further notice is required.

Navy Federal Credit Union's demurrer:

On the Court's own motion, defendant Navy Federal Credit Union's ("Navy Federal") demurrer to plaintiff's first amended complaint is **CONTINUED to November 5, 2026**, at 9:00 a.m. in Department Fourteen. The Court finds that if plaintiff successfully files a motion for leave to file second amended complaint, Navy Federal's demurrer to plaintiff's first amended complaint will be moot. If plaintiff does not timely file and serve a motion for leave to file a second amended complaint, the Court will rule on Navy Federal's demurrer to plaintiff's first amended complaint.

Plaintiff's motion for reconsideration:

Plaintiff's motion for reconsideration of order compelling arbitration and staying case entered on June 11, 2026, is **DENIED**. (Code Civ. Proc., § 1008, subd. (a).) Although the Court finds that plaintiff's motion is timely filed, plaintiff fails to submit evidence of new or different facts, circumstances or law, as required. (Code Civ. Proc., § 1008, subd. (a); *Mink v. Superior Court* (1992) 2 Cal.App.4th 1338, 1342; *In re Marriage of Herr* (2009) 174 Cal.App.4th 1463, 1468 [facts of which the party seeking reconsideration was aware at the time of the original ruling are not new or different]; see also *Dickson v. Mann* (2024) 103 Cal.App.5th 935, 951 [the information must be such that the moving party could not, with reasonable diligence, have discovered or produced it at the original hearing].)